

Unsanctioned additional load notice remanded for speaking order

Allahabad High Court · Division Bench · 4 July 2013 · Writ-C No. 35556 of 2013 · Writ-C No. 35556 of 2013 · **Writ disposed of; remitted for speaking order after objection; coercive action stayed one month**

HEADNOTE

An Executive Engineer's one-sided finding that a consumer is using unsanctioned additional load, with a direction to complete formalities on pain of coercive action, is not left pending in writ. The consumer may file a detailed objection; the authority must pass a speaking order on factual and legal points, including Supply Code contentions not earlier placed in writing; coercive action is stayed for a short period.

FACTUAL SUMMARY

M/s Gupta Ice Factory, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., challenged the Executive Engineer's order dated 14 June 2013. That order proceeded on the premise that the petitioner was using additional load which was not sanctioned or permissible, and required it to complete formalities within fifteen days, failing which coercive action would be taken. Counsel invoked various provisions of the U.P. Electricity Supply Code, 2005, but those contentions had not been placed before the Executive Engineer in writing, and the impugned order had not dealt with them.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::additional-load

unsanctioned additional load — objection and speaking order

HOLDING

Where an Executive Engineer concludes, without the consumer's written objections, that additional load is being used beyond what is sanctioned or permissible and directs completion of formalities on pain of coercive action, the consumer must be given an opportunity to file objection and the authority must deal with factual and legal points, including U.P. Electricity Supply Code, 2005 contentions, by a speaking order. The writ court will not keep the petition pending; a short stay of coercive action may accompany the remand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS USING UNSANCTIONED ADDITIONAL LOAD, AND THE MERITS OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 PROVISIONS INVOKED IN THE WRIT PETITION

Remitted to respondent no. 2 for a speaking order after the petitioner files a detailed objection. ¶ 1